

Motion to Dismiss and Change Venue

Ms. Dolmo moves to dismiss Mr. Miller's complaint against her and for transfer of her claims against Mr. Miller to Sacramento County Superior Court. Northern California Fertility Medical Center opposes the motion.

Preliminarily, Ms. Dolmo's moving papers exceed California Rule of Court, rule 3.1113(d)'s page limit of 15 pages excluding the caption page, the notice of motion, and Ms. Dolmo's declaration. The court exercises its discretion to consider this brief in its entirety, but Ms. Dolmo is admonished to pay close attention to the California Rules of Court.

The motion is denied. The motion to dismiss Mr. Miller's claims against Ms. Dolmo is moot in light of the court's April 9, 2026 ruling granting The Clinic's motion to enforce settlement whereby the court ordered Mr. Miller's operative complaint dismissed with prejudice as to all parties. The dismissal is the result of the parties' global settlement on August 4, 2025 where the parties including Ms. Dolmo affirmed the terms of the agreement under oath in open court on August 4, 2025, as recorded in the court minutes. (Court minutes, Aug. 4, 2025.) As a result of that global settlement, Ms. Dolmo not only dismissed her claims but claims against her were also dismissed. (Civil law and motion minutes, Apr. 9, 2026.)

As to the motion to transfer venue, a court may change the place of trial for various reasons, including when the complaint was filed in the improper court, an impartial trial cannot be had, or for convenience of the witnesses. (Code Civ. Proc., § 397, subds. (a)–(c).) Here, however, there are no grounds to justify an order transferring venue because Ms. Dolmo's claims against Mr. Miller were also dismissed with prejudice in the court's April 9, 2026 ruling pursuant to the agreement of the parties affirmed by Ms. Dolmo under oath in open court on August 4, 2025.

Ms. Dolmo also advances arguments that the April 9, 2026 rulings should be set aside pursuant to Code of Civil Procedure sections 473(b) and 1008. These arguments are duplicative of Ms. Dolmo's motion to set aside or reconsider the April 9, 2026 rulings and the request is denied for the same reasons outlined in the ruling above.

The motion to dismiss and to transfer venue is denied in its entirety.

4. S-CV-0050352 Marksys Holdings v. Redstone Print & Mail

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to be relieved as counsel

Counsel for Redstone Print & Mail, Inc. moves to be relieved as counsel. No response to this motion has been filed.

There is no evidence in the court's file of proof of service of the motion filed August 20, 2026. Based on the failure to demonstrate proper and timely service, the motion is denied without prejudice.

5. S-CV-0051883 Victoria Figone v. Moana Beach Prop. Owners Assn.

Defendants' motion for a limited reopening of expert discovery

Appearance of the parties is required on **September 15, 2026 at 8:30 a.m. in Department 32.**

6. S-CV-0053973 Holt of Cal. v. Viking Forebay Holdings

Plaintiff's motion for summary adjudication is continued to **October 27, 2026 at 8:30 a.m. in Department 32.** The court apologizes to the parties for any inconvenience. No further briefing is permitted.

7. S-CV-0054205 Keller Supply Co. v. Five Star Custom Pools

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Defendant and cross-complainant Merchants Bonding Company ("Merchants") moves for an award of attorneys' fees in the amount of \$10,000 from the amount previously deposited with the court by way of interpleader action pursuant to Code of Civil Procedure section 386.6(a). No opposition has been filed.

Merchants filed a motion to deposit and discharge surety pursuant to Code of Civil Procedure section 386, which the court granted on March 17, 2026. The court has discretion to award reasonable attorneys' fees and costs "from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).) A review of the court file reveals Merchants deposited \$25,000 on or about June 1, 2026. The court exercises its discretion to award attorneys' fees and costs to Merchants.

As to the hourly rate and hours incurred, Merchants submits evidence it incurred 37.8 hours at a rate of \$240 per hour and costs of \$1,145.20. (Decl. Sarfati and Exh. B thereto.) Merchants did not submit any billing statements. Although a party is not required to provide billing statements to support its request for attorneys' fees, the party must provide sufficiently detailed information to permit the court to assess whether the number of hours worked on each task was reasonable. The declaration of counsel